



CHAPTER lxxii.

An Act to authorise the closing of Arundell Street and Panton Square in the city of Westminster. A.D. 1913.

[15th August 1913.]

WHEREAS Aeddan Blanche Muriel Seccombe-Hett and George Levinge Whately (in this Act herein-after referred to as "the Owners") are seised in fee of certain lands abutting upon and fronting to and lying between Coventry Street and Shaftesbury Avenue in the city of Westminster Together with the buildings standing and being thereon and known and in this Act herein-after referred to as "the Arundell Settled Estate":

And whereas the Owners are so seised of the Arundell Settled Estate as trustees of certain deeds of settlement of which short particulars are set out in the First Schedule to this Act (herein-after called "the scheduled deeds"):

And whereas by the scheduled deeds it is provided with respect to each of the three undivided third parts of the Arundell Settled Estate herein-after more particularly mentioned that the trustees or trustee for the time being thereof with the consent of the person or persons (if any) whose consent or concurrence may by virtue of the Settled Land Acts 1882 to 1890 be required in that behalf to exercise over or in relation to all the trust property all such powers of every description as such trustees or trustee could exercise if they or he were absolute owners or absolute owner of the trust property:

And whereas the only persons (other than mortgagees) having any beneficial interests in the Arundell Settled Estate under the scheduled deeds are the following namely Edith

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A.D. 1913. Mary Dottina Arundell spinster (herein-after called "Edith Arundell") and the six children of the late Aeddán Donnithorne (formerly Aeddán Arundell spinster who was a sister of Edith Arundell) namely Arthur Arundell Donnithorne (herein-after called "Arthur Donnithorne") Clarence Edward Stuart Comyn Donnithorne (herein-after called "Stuart Donnithorne") Vyvyan Ralph Noel Comyn Donnithorne (herein-after called "Noel Donnithorne") the said Aeddán Blanche Muriel Seccombe-Hett (formerly Donnithorne) (now the wife of Geoffrey Seccombe-Hett and herein-after called "Muriel Seccombe-Hett") Loveday Louisa Gladys Figgis (formerly Donnithorne) (now the wife of John Maurice Figgis and herein-after called "Gladys Figgis") and Guinevere Cicely Donnithorne spinster (herein-after called "Guinevere Donnithorne") and the issue of the said six children of the said late Aeddán Donnithorne and any husband or wife whom any of the said six children of the said late Aeddán Donnithorne may leave her or him surviving and to whom he or she may appoint an interest as herein-after mentioned:

And whereas except as regards the ultimate trusts herein-after mentioned none of them Edith Arundell Arthur Donnithorne Stuart Donnithorne Noel Donnithorne Muriel Seccombe-Hett Gladys Figgis and Guinevere Donnithorne has any greater interest in any part or share of the Arundell Settled Estate than an interest for his or her life but in the case of each of Arthur Donnithorne Stuart Donnithorne Noel Donnithorne Muriel Seccombe-Hett Gladys Figgis and Guinevere Donnithorne wherever any trust of any share of the Arundell Settled Estate for him or her for his or her life whether in possession or remainder is declared by the scheduled deeds or any of them such trust is immediately followed by a trust for his or her issue as he or she as the case may be shall by deed or will appoint and in default of appointment for his or her children who being male shall attain the age of twenty-one years or being female shall attain that age or marry under it and if more than one in equal shares in fee simple:

And whereas by the scheduled deeds the trusts of the Arundell Settled Estate are separately declared with respect to the three undivided equal third parts thereof (herein-after respectively called the "Arundell share" the "Donnithorne share" and the "Stuart share"):

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And whereas the trusts so declared both of the Arundell share and the Stuart share are shortly as follows (namely) As to the whole of both such shares for Edith Arundell for her life with remainder As to several undivided shares of both such shares (making up together in each case the entirety thereof) upon trust for the said six children of the said Aeddan Donnithorne deceased for their respective lives in various orders of succession with a remainder immediately after each such life interest (other than the life interest of Edith Arundell) to the issue of such life tenant in manner aforesaid with ultimate trust after the death of Edith Arundell and of all the said six children of the said Aeddan Donnithorne and in the event of none of the issue of any of them the said six children of the said Aeddan Donnithorne attaining a vested interest under the trusts aforesaid as to the whole of the Arundell share for the right heirs of Edith Arundell and as to the Stuart share as to two equal third parts thereof for the right heirs of Noel Donnithorne and as to the remaining one equal third part thereof for the right heirs of Gladys Figgis:

And whereas the trusts so declared of the Donnithorne share are shortly as follows (namely) That during the life of Arthur Donnithorne and during the life of any widow who may survive him the trustees or trustee for the time being of the Arundell Settled Estate shall receive the rents and profits of the Donnithorne share and pay or apply the same for the maintenance and personal support or benefit of all or any one or more to the exclusion of the other or others of the following persons namely Arthur Donnithorne and his wife or widow (if any) and his children or remoter issue for the time being in existence and the other persons for the time being entitled absolutely contingently or otherwise in the Donnithorne share or any part thereof or the income thereof under the trusts thereof declared to take effect after the death of the survivor of Arthur Donnithorne and any such widow of his as aforesaid as the said trustees or trustee should in their or his absolute discretion think fit and that after the death of the survivor of Arthur Donnithorne and any such widow of his as aforesaid the Donnithorne share should be held in trust for the issue of Arthur Donnithorne as he should by deed or will appoint and in default of such appointment in trust for all or any the children of Arthur Donnithorne who being male should attain the age of twenty-one years or being female should attain that

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A.D. 1913. age or marry under it and if more than one as tenants in common in equal shares in fee simple and for default of such issue of Arthur Donnithorne in trust as to several undivided shares of the Donnithorne share (making up together the entirety of the Donnithorne share) in trust for the other five children of the said Aeddan Donnithorne (namely Stuart Donnithorne Noel Donnithorne Muriel Seccombe-Hett Gladys Figgis and Guinevere Donnithorne) during their respective lives in various orders of succession with a remainder immediately after each such life interest to the issue of such life tenant in manner aforesaid with an ultimate remainder As to the whole Donnithorne share in the event of none of the issue of any of the said six children of the said Aeddan Donnithorne attaining a vested interest therein under the trusts aforesaid in trust for the right heirs of Arthur Donnithorne:

And whereas by the scheduled deeds every person (except Edith Arundell) thereby made tenant for life of any part of the Arundell Settled Estate is empowered by deed or will to appoint upon trust for any widow or widower whom such tenant for life may leave him or her surviving a life interest to take effect immediately after the life interest of the appointor in the part or parts of the Arundell Settled Estate whereof the appointor was such tenant for life:

And whereas Stuart Donnithorne has been married once only namely on the twenty-ninth day of June one thousand nine hundred and ten to Winifred Anna Strickland Taylor and there has been issue of such marriage one child only namely Ralph Stuart Arundell Donnithorne who was born on the second day of August one thousand nine hundred and twelve:

And whereas Muriel Seccombe-Hett has been married once only namely on the twentieth day of January one thousand nine hundred and four to the said Geoffrey Seccombe-Hett and there has been issue of the said marriage two children only namely Aeddan Mary Arundell Seccombe-Hett who was born on the twelfth day of May one thousand nine hundred and five and Geoffrey Arundell Seccombe-Hett who was born on the fifth day of March one thousand nine hundred and nine:

And whereas Gladys Figgis has been married once only namely on the eleventh day of June one thousand nine hundred and four to the said John Maurice Figgis and there has never been any issue of the said marriage:

And whereas none of them the said Arthur Donnithorne A.D. 1913.
Noel Donnithorne or Guinevere Donnithorne has ever yet been
married :

And whereas upon the Arundell Settled Estate there are
situate certain public highways that is to say Arundell Street
leading from Coventry Street aforesaid to Panton Square and the
said Panton Square which highways form a cul-de-sac and are
useful only for purposes of approach and as leading to the lands
buildings and premises abutting thereon and the subsoil of such
highways and all the said lands buildings and premises are vested
in the Owners subject only to certain short leases and tenancies
of such lands buildings and premises all of which will determine
on or before the twenty-ninth day of September one thousand
nine hundred and fifteen :

And whereas the said Arundell Street and Panton Square
have become and are unnecessary as public highways and it is
desirable alike in the interest of the public and the Owners that
the same should be closed and all rights of way and passage or
other rights and easements thereover extinguished and the soil
thereof vested in the owners freed and discharged from all such
rights :

And whereas it is expedient that the agreement between the
mayor aldermen and councillors of the city of Westminster
being the local authority responsible for the repair of the said
highways and the Owners set out in the Second Schedule to
this Act should be confirmed and made binding on the parties
thereto :

And whereas the purposes before recited cannot be effected
without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted
and be it enacted by the King's most Excellent Majesty by and
with the advice and consent of the Lords Spiritual and Temporal
and Commons in this present Parliament assembled and by the
authority of the same as follows (that is to say) :—

1. This Act may be cited as the Arundell Estate (Closing Short title.
of Arundell Street and Panton Square) Act 1913.

2. In this Act—

“The Arundell Settled Estate” means certain lands abutting
upon and fronting to and lying between Coventry
Street and Shaftesbury Avenue in the city of

Interpreta-
tion.

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Westminster and known as "The Arundell Settled Estate";

"The Owners" means Aeddán Blanche Muriel Seccombe-Hett and George Levinge Whately (in whom the Arundell Settled Estate is now vested) their successors and assigns;

"The scheduled deeds" means the deeds of which short particulars are set out in the First Schedule to this Act.

Arundell
Street and
Panton
Square to
be closed.

3. From and after the twenty-ninth day of September one thousand nine hundred and fifteen or such earlier date as the leases and tenancies of the lands buildings and premises abutting thereon and subsisting at the passing of this Act may determine the public highways known as Arundell Street and Panton Square and situate on the Arundell Settled Estate shall so far as the Owners are then owners of the land on both sides of the said Arundell Street and on all sides of the said Panton Square be closed and discontinued as public highways and from and after such date all public rights of way and passage and other rights and easements therein and thereover shall be extinguished and cease and the sites of the said highways freed and discharged from all such rights shall remain and be vested in the Owners as part of the Arundell Settled Estate and subject to the provisions of the scheduled deeds and the Owners may appropriate and use the same accordingly and may erect buildings on the whole or any part thereof or otherwise deal with the same as part of and for the benefit of the Arundell Settled Estate:

Provided that so soon as Arundell Street or Panton Square is closed and discontinued as a public highway under the powers of this section the Owners shall forthwith give notice thereof in writing to the London County Council.

Saving for
London
Building
Acts.

4. Nothing in this Act shall exempt any buildings or structures erected or constructed upon the sites or any part of the sites of Arundell Street and Panton Square from the provisions of the London Building Acts 1894 to 1909 and any Act amending the same or of any byelaws or regulations in force thereunder.

Confirma-
tion of
agreement
with West-

5. The agreement made the twenty-first day of February one thousand nine hundred and thirteen between the Owners of the one part and the mayor aldermen and councillors of the city of

Westminster of the other part set forth in the Second Schedule to this Act is hereby confirmed and made binding on the parties thereto. A.D. 1913.
Westminster City Council.

6. The Owners may in over or under the streets by this Act authorised to be closed and discontinued remove or fill up any sewer and also remove any main pipe tube wire or apparatus laid down or placed therein or thereover for supplying water gas or electricity or for telegraphic or other purposes and any other obstruction causing as little detriment and inconvenience as circumstances admit and making reasonable compensation to any company or person for any damage caused by any operations of the Owners under the powers of this section: As to water
gas and
other pipes.

Provided that the Owners shall not interfere with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of the last-mentioned section:

Provided also that the Owners shall not under the powers of this section of this Act remove or otherwise alter the position of any telegraphic line as defined by the Telegraph Act 1878 belonging to the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

7. For the protection of the Metropolitan Water Board (in this section referred to as "the Board") the following provisions shall apply and have effect unless otherwise agreed in writing between the Board and the Owners (that is to say):— For protec-
tion of
Metropolitan
Water
Board.

Wherever by reason or in consequence of the stopping up of any street or square any apparatus of the Board shall be rendered derelict or unnecessary the Owners shall forthwith after such stopping up pay to the Board such a sum as may be agreed between the Board and the Owners or as failing such agreement may be determined by arbitration as herein-after provided to be the value of—

(a) any apparatus of the Board situate in and under the street and square so stopped up; and

(b) any apparatus of the Board used exclusively for the purpose of supplying water to any premises to which a supply is furnished by means of the apparatus aforesaid;

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and any such apparatus shall thereupon become the property of the Owners :

In addition to the payment referred to in the last preceding subsection of this section the Owners shall pay to the Board their reasonable charges of and incidental to the cutting off of any such apparatus as is referred to in the said subsection from any other apparatus of the Board and of and incidental to any other works or things rendered necessary in consequence of any apparatus of the Board being rendered derelict or unnecessary by the stopping up of streets or otherwise :

If any difference shall arise between the Board and the Owners with respect to any questions which are under the provisions of this section to be determined by arbitration the matter in difference shall be referred to and settled by an arbitrator to be agreed upon or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such settlement by arbitration.

For protec-
tion of Gas
Light and
Coke Com-
pany.

8.—(1) Notwithstanding anything contained in this Act no main pipe or apparatus of the Gas Light and Coke Company shall be removed altered or interfered with under the powers of this Act unless or until the highway in or under which the same shall be laid shall have been closed and discontinued under the said powers and any such removal alteration or interference which the Owners may require under the said powers shall be carried out by the said company at the request and expense of the Owners who shall also bear and on demand pay to the said company the cost reasonably incurred by them in or about the cutting off of mains pipes and apparatus necessitated by such removal alteration or interference and of any alteration or cutting off of mains pipes and apparatus which the said company may deem it necessary or expedient otherwise than at the request of the Owners to carry out in consequence of the exercise of any of the powers of this Act.

(2) The Owners shall within one month after the closing of the said street and square pay to the said company such a sum as may be agreed between the company and the Owners or as failing such agreement may be determined by arbitration

as herein-after provided as the value of the mains pipes and apparatus of the company situate in and under the said street and square. A.D. 1913.

(3) For the purpose of this section the value of the mains pipes and apparatus shall be such a sum as they would realise if removed from the said street or square and sold in the open market.

(4) If any difference shall arise between the Owners and the company as to the sum to be paid under the provisions of this section such question shall be referred to the determination of an arbitrator to be agreed between them or in default of agreement to be appointed by the President for the time being of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

9. The negotiations and preparations for and the obtaining of this Act and any payments made by the Owners for and with respect to or under the provisions of this Act shall for the purposes and within the meaning of the scheduled deeds be deemed to be and shall be purposes for which capital moneys arising from a sale of the hereditaments comprised in the Arundell Settled Estate are by statute authorised to be expended. Expenses of and under Act.

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A.D. 1913. The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

DEEDS RELATING TO THE ARUNDELL SETTLED ESTATE.

Date.	Parties.	Nature.	Reference Description.
17th October 1901.	(1) Edith Mary Dottina Arundell. (2) Arthur Arundell Donnithorne. (3) Loveday Louisa Gladys Donnithorne. (4) Clarence Edward Stuart Comyn Donnithorne. (5) Aeddán Blanche Muriel Donnithorne. (6) Vyvyan Ralph Noel Comyn Donnithorne. (7) Guinevere Cicely Donnithorne.	Deed of family arrangement providing for the settlement of the Arundell Settled Estate.	The deed of arrangement of 1901.
17th October 1901.	(1) Edith Mary Dottina Arundell. (2) Arthur Arundell Donnithorne. (3) Clarence Edward Stuart Comyn Donnithorne. (4) Loveday Louisa Gladys Donnithorne. (5) Aeddán Blanche Muriel Donnithorne. (6) Vyvyan Ralph Noel Comyn Donnithorne. (7) Guinevere Cicely Donnithorne. (8) Colonel Robert Edward Stuart Harington Stuart. Aeddán Blanche Muriel Donnithorne.	Settlement of the Arundell share pursuant to the deed of arrangement of 1901 Colonel Robert Edward Stuart Harington Stuart and Aeddán Blanche Muriel Donnithorne being appointed trustees.	The Arundell settlement of 1901.

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Date.	Parties.	Nature.	Reference Description.
17th October 1901.	(1) Arthur Arundell Donni- thorne. (2) Edith Mary Dottina Arundell. (3) Clarence Edward Stuart Comyn Donnithorne. (4) Loveday Louisa Gladys Donnithorne. (5) Aeddán Blanche Muriel Donnithorne. (6) Vyvyan Ralph } Noel Comyn } Donnithorne. } (In- (7) Guinevere } Cicely Donni- } thorne. } (8) Colonel Robert Edward Stuart Harington Stuart. Aeddán Blanche Muriel Donnithorne.	Settlement of the Donni- thorne share pursuant to the deed of ar- rangement of 1901 Colonel Robert Edward Stuart Harington Stuart and Aeddán Blanche Muriel Donni- thorne being appointed trustees.	The Donni- thorne set- tlement of 1901.
17th October 1901.	(1) Vyvyan Ralph Noel Comyn Donnithorne (an infant). (2) Loveday Louisa Gladys Donnithorne. (3) Arthur Arundell Donni- thorne. (4) Edith Mary Dottina Arundell. (5) Clarence Edward Stuart Comyn Donnithorne. (6) Aeddán Blanche Muriel Donnithorne. (7) Guinevere Cicely Don- nithorne (an infant). (8) Colonel Robert Edward Stuart Harington Stuart. Aeddán Blanche Muriel Donnithorne.	Settlement of the Stuart share pursuant to the deed of arrangement of 1901 Colonel Robert Edward Stuart Harington Stuart and Aeddán Blanche Muriel Donnithorne being ap- pointed trustees.	The Stuart settlement of 1901.
29th April 1902.	(1) Arthur Arundell Donni- thorne. (2) Colonel Robert Edward Stuart Harington Stuart. Aeddán Blanche Muriel Donnithorne.	Revocation of the Donni- thorne settlement of 1901.	—
1st May 1902.	(1) Arthur Arundell Donni- thorne. (2) Edith Mary Dottina Arundell. (3) Clarence Edward Stuart Comyn Donnithorne. (4) Loveday Louisa Gladys Donnithorne.		

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Date.	Parties.	Nature.	Reference Description.
	(5) Aeddán Blanche Muriel Donnithorne. (6) Vyvyan Ralph Noel Comyn Donnithorne. (Infants.) (7) Guinevere Cicely Donnithorne. (8) Colonel Robert Edward Stuart Harington Stuart. Aeddán Blanche Muriel Donnithorne. George Levinge Whately	Re-settlement of the Donnithorne share Colonel Robert Edward Stuart Harington Stuart Aeddán Blanche Muriel Donnithorne and George Levinge Whately being appointed trustees.	The Donnithorne settlement of 1902.
1st May 1902.	(1) Edith Mary Dottina Arundell. (2) Colonel Robert Edward Stuart Harington Stuart. Aeddán Blanche Muriel Donnithorne. (3) George Levinge Whately	Appointment of George Levinge Whately as an additional trustee of the Arundell settlement of 1901.	—
1st May 1902.	(1) Colonel Robert Edward Stuart Harington Stuart. Aeddán Blanche Muriel Donnithorne. (2) George Levinge Whately	Appointment of George Levinge Whately as an additional trustee of the Stuart settlement of 1901.	—
2nd May 1902.	(1) Edith Mary Dottina Arundell. (2) Arthur Arundell Donnithorne. (3) Loveday Louisa Gladys Donnithorne. (4) Clarence Edward Stuart Comyn Donnithorne. (5) Aeddán Blanche Muriel Donnithorne. (6) Vyvyan Ralph Noel Comyn Donnithorne. (Infants.) (7) Guinevere Cicely Donnithorne.	Deed reconstituting the deed of arrangement of 1901.	The deed of arrangement of 1902.
2nd May 1902.	(1) Edith Mary Dottina Arundell. (2) Arthur Arundell Donnithorne. (3) Clarence Edward Stuart Comyn Donnithorne. (4) Loveday Louisa Gladys Donnithorne. (5) Aeddán Blanche Muriel Donnithorne.		

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Date.	Parties.	Nature.	Reference Description.
	(6) Vyvyan Ralph Noel Comyn Donnithorne. (7) Guinevere Cicely Donnithorne. (8) Colonel Robert Edward Stuart Harington Stuart. Aeddán Blanche Muriel Donnithorne. George Levinge Whately	Deed revoking and varying the provisions of the Arundell settlement of 1901.	The Arundell variation deed of 1902.
2nd May 1902.	(1) Loveday Louisa Gladys Donnithorne. (2) Arthur Arundell Donnithorne. (3) Edith Mary Dottina Arundell. (4) Clarence Edward Stuart Comyn Donnithorne. (5) Aeddán Blanche Muriel Donnithorne. (6) Vyvyan Ralph Noel Comyn Donnithorne. (7) Guinevere Cicely Donnithorne. (8) Colonel Robert Edward Stuart Harington Stuart. Aeddán Blanche Muriel Donnithorne. George Levinge Whately	Deed revoking and varying the provisions of the Stuart settlement of 1901.	The Stuart variation deed of 1902.
1st July 1903.	(1) Guinevere Cicely Donnithorne. (2) Edith Mary Dottina Arundell. Arthur Arundell Donnithorne. Loveday Louisa Gladys Donnithorne. Clarence Edward Stuart Comyn Donnithorne. Aeddán Blanche Muriel Donnithorne and Vyvyan Ralph Noel Comyn Donnithorne (an infant).	Deed of confirmation by Guinevere Cicely Donnithorne (who had recently attained her majority) of the deeds of arrangement of 1901 and 1902.	—

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Date.	Parties.	Nature.	Reference Description.
5th June 1905.	(1) Vyvyan Ralph Noel Comyn Donnithorne. (2) Edith Mary Dottina Arundell. Arthur Arundell Donnithorne. Loveday Louisa Gladys Figgis. Clarence Edward Stuart Comyn Donnithorne. Aeddán Blanche Muriel Seccombe-Hett and Guinevere Cicely Donnithorne.	Similar deed of confirmation by Vyvyan Ralph Noel Comyn Donnithorne.	—
5th June 1905.	(1) Vyvyan Ralph Noel Comyn Donnithorne. (2) Loveday Louisa Gladys Figgis. (3) Arthur Arundell Donnithorne. (4) Edith Mary Dottina Arundell. (5) Clarence Edward Stuart Comyn Donnithorne. (6) Aeddán Blanche Muriel Seccombe-Hett. (7) Guinevere Cicely Donnithorne. (8) Robert Edward Stuart Harington Stuart. Aeddán Blanche Muriel Seccombe-Hett. George Levinge Whately	Deed of confirmation by Vyvyan Ralph Noel Comyn Donnithorne of the Stuart settlement of 1901 as varied by the Stuart variation deed of 1902.	Noel Donnithorne's confirmatory settlement.

THE SECOND SCHEDULE.

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AN AGREEMENT made the twenty-first day of February one thousand nine hundred and thirteen between AEDDAN BLANCHE MURIEL SECCOMBE-HETT of No. 8 Wimpole Street in the county of London the wife of Geoffrey Seccombe-Hett F.R.C.S. and GEORGE LEVINGE WHATELY of 17 Lincoln's Inn Fields in the county of London gentleman of the one part and THE MAYOR ALDERMEN AND COUNCILLORS OF THE CITY OF WESTMINSTER (herein-after called "the Council") of the other part.

WHEREAS the land coloured pink and blue on the plan annexed hereto is vested in the said Aeddán Blanche Muriel Seccombe-Hett and George Levinge Whately for an estate in fee simple as the present Trustees of the several indentures specified in the schedule to the Bill herein-after referred to (being settlements of the said land coloured pink and blue on the said plan together with other hereditaments the said land coloured pink forming the site of the messuages known as Nos. 2 to 20 Arundell Street and Nos. 10 to 14 Coventry Street in the parish of St. James' Westminster in the county of London and the said land coloured blue forming the highway known as Arundell Street or Panton Square) whereby and whereunder the said Aeddán Blanche Muriel Seccombe-Hett and George Levinge Whately and other the Trustees or Trustee for the time being of the said settlements (herein-after called "the Trustees") are given all such powers of improvement development and management over or in relation to all or any part of the settled estates as they could exercise if they were absolute owners of the same estates and in particular a power to pull down and rebuild houses and other buildings and to lay out and develop the settled estates or any part thereof as a building estate and generally to improve and develop the same with power to raise on mortgage any moneys which the Trustees may think fit to raise and carry out any of the powers and trusts thereby vested in the Trustees and which the Trustees may think fairly chargeable against the inheritance of the settled estates or any part thereof and in particular for enabling the Trustees to effect any of the permanent improvements thereby authorised :

And whereas the land coloured pink on the said plan forms the present site of buildings in the occupation of the Trustees or let on lease by them :

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And whereas the said land coloured blue at present forms two highways repairable by the Council as the highway authority for the city of Westminster and known respectively as Arundell Street and Panton Square and the Council have in respect of the same such rights and duties as are incident to the use thereof as public highways :

And whereas the said highways are useful only for the purposes of approach to the lands buildings and premises abutting thereon and have become and are unnecessary as public highways and it is desirable that the same should be closed and all rights of way and passage or other rights and easements thereover extinguished and the soil thereof vested in the owners freed and discharged from all such rights on the terms of this agreement :

And whereas in order that the purposes as lastly herein-before recited may be authorised and effected the Trustees are in the present session of Parliament promoting a Bill intituled "A Bill to authorise the closing of Arundell Street and Panton Square in the city of Westminster" of which a copy is attached hereto and is herein-after referred to as "the Bill" :

And whereas there are in the near neighbourhood of the aforesaid Arundell Street and Panton Square and elsewhere in the city of Westminster other public highways which in the interests of the public it is desirable should be widened and which the Council contemplate widening or which are in course of being widened by the Council namely Whitcomb Street Wardour Street and Argyll Place and the Council have agreed to consent to the proposals contained in the Bill subject to the Trustees agreeing to contribute to the Council upon the terms herein-after provided the sum of twelve thousand five hundred pounds to be applied by the Council towards the cost of such widenings or one of them :

Now therefore it is hereby agreed by and between the parties hereto as follows :—

1. The Council hereby declare their consent to the provisions of the Bill and hereby undertake (but at the expense of the Trustees) to do all such acts and things and render all such assistance as may be reasonably required by the Trustees to procure the passing of the Bill into law during the subsistence of this agreement.

2. If the Bill be passed into law then within three calendar months (but excluding from such calculation the months of August September and October) after the before-mentioned highways shall have been closed and discontinued as public highways in pursuance of the provisions in that behalf contained in the Bill the Trustees out of the funds and assets of the trust estate shall pay to the Council the sum of twelve thousand five hundred pounds with interest thereon at the

rate of four per cent. per annum from the date of the said closing A.D. 1913.
and discontinuance :

Provided always and it] is hereby expressly agreed and declared that the Trustees shall not nor shall either or any of them be in any case under any personal liability to the Council for the said sum of twelve thousand five hundred pounds or any interest thereon.

3. The said sum of twelve thousand five hundred pounds and the interest thereon shall be applied by the Council towards the cost of widening the public highways aforesaid namely Whitcomb Street War-dour Street or Argyll Place or one of them but the Trustees shall not be in any way concerned to control or inquire as to or see to the application by the Council of the said sum of twelve thousand five hundred pounds and interest thereon and the receipt of the Council shall be an absolute discharge to the Trustees.

4. The Trustees shall pay to the Council all the proper costs charges and expenses of the Council as between solicitor and client of and incidental to the fulfilment by the Council of their undertaking in paragraph 1 of this agreement herein-before contained and to the payment and receipt by them of the said sum of twelve thousand five hundred pounds and interest.

5. The Trustees shall in any event immediately after the execution hereof pay to the Council all the proper costs charges and expenses of the Council as between solicitor and client of and incidental to the negotiations preparation and execution of this agreement.

6. This agreement shall be scheduled to the Bill and is made subject to such alterations as Parliament may think fit to make therein but in the event of either House of Parliament making any material alteration therein or in the provisions of the Bill as attached hereto prejudicial to either party such party may by notice in writing rescind this agreement save as to the provisions contained in clause 5 hereof.

In witness whereof the said Aeddan Blanche Muriel Seccombe-Hett and George Levinge Whately have hereunto set their hands and seals and the Council have caused their common seal to be hereunto affixed the day and year first above written.

Signed sealed and delivered }
by the above-named Aeddan }
Blanche Muriel Seccombe- } A. B. MURIEL SECCOMBE-HETT.
Hett in the presence of }

NOEL DONNITHORNE
8 Wimpole Street
London W. Gentleman.

B

[Ch. lxxii.] *Arundell Estate (Closing of* [3 & 4 GEO. 5.]
Arundell Street and Panton Square) Act, 1913.

A.D. 1913.
—

Signed sealed and delivered }
by the above-named George } G. L. WHATELY.
Levinge Whately in the }
presence of }

E. C. MILEHAM

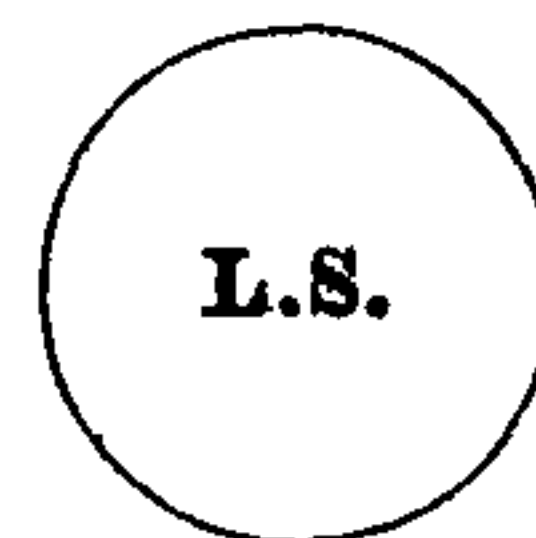
Clerk to Messrs. Rooper and Whately

17 Lincoln's Inn Fields

London W.C.

Solicitors.

The common seal of the mayor }
aldermen and councillors of }
the city of Westminster was }
in the presence of the mayor }
and of the undersigned }
hereunto affixed by order }



JOHN HUNT

Town Clerk.

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FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.

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